# Pastoral Counseling Confidentiality Agreement

*[Church or Ministry Name] · [Address] · [Phone] · [Email/Website]*

**Your minister** *(filled in by the church or ministry)*

Minister name and title: _____ State: _____

Ordaining or licensing body / denomination: _____ Credential # (if any): _____

Church or ministry: _____ Supervisor/overseer (if any): _____

Name of person receiving counseling: _____ Date of birth: _____

Trust is at the heart of pastoral care. This agreement explains what pastoral counseling is, how I protect your privacy, the few times the law requires me to share information, and your choices. Please read it, initial where asked, and sign before we begin. You can ask questions at any time.

## 1. WHAT PASTORAL COUNSELING IS – AND IS NOT

Pastoral counseling is spiritual care and guidance from a minister, grounded in prayer, Scripture, and the Christian faith. It is not licensed mental health treatment. I am not acting as a licensed counselor, psychologist, or therapist [unless I also hold such a license and tell you so], I do not diagnose or treat mental health conditions, and I do not bill health insurance. [Pastoral counseling is offered at no charge / for a suggested gift of $___ to the ministry.]

If you have a serious or ongoing concern, such as depression, anxiety, trauma, an eating disorder, addiction, or thoughts of suicide, I will encourage you to see a licensed mental health professional or a physician, and I can help you find one. I can keep walking with you spiritually while you get that help, with your permission to coordinate.

## 2. WHAT CONFIDENTIALITY MEANS

What you share with me in pastoral counseling is kept confidential. This includes our conversations, messages, and any notes I keep. I will not even confirm that you are meeting with me unless you give me permission. In almost all cases, I share information about you only when you give me written permission.

## 3. THE CLERGY-PENITENT PRIVILEGE

Every state has a law that protects some private conversations with clergy from being used in court. This is called the clergy-penitent (or priest-penitent) privilege. It varies by state [check [State] law] and does not cover everything. It usually protects only conversations made in confidence to a minister who is acting as a spiritual adviser, and it may not apply if other people are present, if the conversation was not for spiritual guidance, or in cases involving child abuse. It also does not change the reporting duties in Section 4.

## 4. WHEN I MAY HAVE TO SHARE INFORMATION

These limits are based on the laws of the state listed under “Your minister” above. When I must share, I share only what is truly necessary and, whenever it is safe and possible, I will talk with you first.

- **Danger to yourself.** If I believe you are in serious danger of killing or seriously harming yourself, I may contact your emergency contact, family, or emergency services to keep you safe.
- **Danger to others.** If you threaten serious harm to another person, I may warn that person or notify the police.
- **Abuse or neglect of a child.** Many states name clergy as mandated reporters of child abuse and neglect, and many others require any person to report. If I learn of or suspect abuse or neglect of anyone under 18, I will report it to child protective services or the police. [State] law [does / does not] have a narrow exception for information received only in a private confession; even where an exception exists, I will report information I learn any other way.
- **Abuse of an elder or dependent adult.** If I learn of or suspect abuse, neglect, or exploitation of an elder [age __ or older in [State]] or a disabled or dependent adult, I [must / may] report it to the state agency that handles these reports.
- **Court orders and subpoenas.** If a judge orders me to release information or to testify, I may have to comply. I will claim the clergy privilege where the law allows, ask for your consent, and try to limit what is shared.
- **Emergencies.** In a medical or mental-health emergency, I may share what emergency responders need to help you.

*Talking about a past wrong, when no one is in ongoing danger, generally does not require a report. If you are an adult being hurt by a partner or family member, I will not report it without your permission [check [State] law], but we will make a safety plan together.*

## 5. YOUR CHURCH, ITS LEADERS, AND PRAYER REQUESTS

I will not tell church leaders, elders, deacons, staff, or volunteers anything about our counseling, including that we are meeting, without your written permission. [If our church has a membership covenant or church-discipline process, describe

here how counseling information is or is not used.] To care for you well, I may talk with my supervisor, mentor, or a denominational leader, without your name or details that would identify you; they are expected to keep it confidential.

Your name and needs will never be placed on a prayer list, shared in a small group, or mentioned from the pulpit without your permission. Please choose:

**Church leaders:** ☐ Do not share anything ☐ You may share limited information with the person named here:

Name and role: _____

**Prayer:** ☐ Please keep my name private ☐ You may ask others to pray for me by first name only, with no details

## 6. COUPLES AND FAMILY COUNSELING

When I meet with a couple or family together, I cannot promise that others in the room will keep what is said private, and the clergy privilege may not apply when other people are present. Please choose one (every adult taking part signs at the end):

☐ No-secrets policy: something one person tells me privately may be brought into joint sessions if it is important (I will first encourage you to share it yourself)

☐ Private information shared with me alone stays private unless it falls under Section 4

☐ Not applicable – individual counseling

## 7. CHILDREN AND TEENS [IF APPLICABLE]

Parents or legal guardians generally have the right to know about their child's counseling [as allowed by [State] law and custody orders]. I will usually share general progress rather than details, unless there is a safety concern. I need a parent's or guardian's permission to counsel a minor, and I follow [church name]'s child-safety policy [for example, meeting where others are nearby].

## 8. EMAIL, TEXT, PHONE, AND VIDEO

Email and text messages are convenient but not fully secure. Please use them for scheduling only, not for personal details. If we meet by video, join from a private place on your own device and a password-protected network, and do not record. I do not provide counseling or crisis help by email or text.

**You may contact me by:** ☐ Phone call ☐ Voicemail ☐ Text ☐ Email

## 9. TECHNOLOGY AND AI-ASSISTED TOOLS

I may keep notes in secure electronic software. Some software includes AI-assisted tools, for example to help organize notes or prepare resources. I use them only with privacy and security safeguards and written agreements that require the provider to protect your information, and I will not enter details that identify you into any tool without those safeguards. I do not use AI to give spiritual direction, to make decisions about your care, or to respond to a crisis, and I review and am responsible for anything a tool produces. You may ask what tools I use, and you may say no without any effect on your care.

**My choice:** ☐ AI-assisted note tools may be used as described ☐ Please do not use AI-assisted tools with my information

## 10. NOTES AND RECORDS

I keep only brief notes to help me care for you. They are stored securely [in a locked file / in encrypted, password-protected software], kept separate from church membership and giving records, and not available to church staff or leaders. Many churches and ministers are not covered by the federal HIPAA privacy law, which mainly applies to health care providers who bill insurance electronically, so this agreement and [State] law, not HIPAA, describe how your information is protected. I keep notes for [__] years after our last meeting and then destroy them securely. If I leave this ministry, [describe who keeps or destroys the notes].

## 11. YOUR RIGHTS AND CHOICES

- Ask questions about this agreement and about my training and background at any time.
- Choose how much prayer, Scripture, and faith discussion you want, and stop counseling at any time.
- Ask for a referral to a licensed counselor, doctor, or other help, at any time.
- Ask what I have written about you [describe whether you will share notes on request].
- Raise a concern with me, or with [supervisor/overseer or denominational office, and contact information].

## 12. IF YOU ARE IN CRISIS

I am not a crisis service, and messages may not be seen right away.

- Emergency or immediate danger: call 911 or go to the nearest emergency room.
- 988 Suicide & Crisis Lifeline: call or text 988, or chat at 988lifeline.org (free, 24/7; Veterans press 1).

- National Domestic Violence Hotline: 1-800-799-7233, or text START to 88788. Childhelp Child Abuse Hotline: 1-800-422-4453.
- [State] child abuse reporting line: [_____] [State] Adult Protective Services: [_____]

## 13. ACKNOWLEDGMENT AND SIGNATURES

*Please initial each statement to show you understand it:*

_____ **Pastoral care.** This is pastoral care from a minister, not licensed mental health treatment, and I may be referred to a licensed professional when needed.

_____ **Privilege.** The clergy-penitent privilege varies by state and does not cover everything.

_____ **Safety.** My minister may share information to protect me or someone else from serious harm.

_____ **Abuse reporting.** My minister will report suspected abuse or neglect of a child, an elder, or a dependent adult as the law requires.

_____ **Legal.** A court order or other law may require my minister to release information.

_____ **Church.** Nothing is shared with church leaders, staff, or prayer lists without my permission, and my minister may consult a supervisor without my name.

_____ **Electronic.** Email, text, and video have privacy risks, and I chose my contact methods above.

_____ **Technology.** I understand how secure software and AI-assisted tools may be used, and I made my choice above.

*I have read this agreement, have had the chance to ask questions, and understand the nature and limits of confidentiality in pastoral counseling. I agree to begin pastoral counseling with this understanding.*

_____ _____
Counselee signature Date

_____
Printed name

_____ _____
Parent/guardian signature (if counselee is a minor) Date

_____
Printed name

_____ _____
Other adult participant (couples/family) Date

_____
Printed name

_____ _____
Minister signature Date